Additional Information

U.S. Export and Sanctions Regulations

Export Control Laws and Regulations

U.S. export control laws and regulations are designed to protect U.S. national security; prevent the proliferation of weapons of mass destruction; further U.S. foreign policy, including the support of international agreements, human rights, and regional stability; and maintain U.S. economic competitiveness. They govern how information, technologies, and commodities can be transmitted to anyone internationally, including U.S. citizens, or to foreign nationals in the United States, and prohibit the unlicensed export of certain items and services.

U.S. academic and research institutions are subject to export regulations, including the International Traffic in Arms Regulations (ITAR), implemented by the U.S. Department of State, and the Export Administration Regulations (EAR), implemented by the U.S. Department of Commerce. The Office of Foreign Asset Control (OFAC), which is part of the U.S. Department of the Treasury, is responsible for administering and enforcing economic and trade sanctions against certain nations, entities, and individuals.

While some research conducted on U.S. campuses will not be subject to export control restrictions, the regulations can apply to many university/research related activities, such as:

- Traveling internationally with university-owned items
- Shipping research materials to foreign collaborators
- Hosting international visitors
- International travel or collaboration involving sanctioned or embargoed countries
- Engaging in controlled or restricted research

Failure to comply with export regulations can result in severe consequences for both the individual and their institution.

Export Control and Sharing Research

Disclosure of information to non-U.S. persons and international travel with equipment, including personal communication devices, is subject to U.S. export control laws and regulations.

- Consider the type of data/information you plan on sharing. Certain areas of research are more likely than others to result in license requirements and/or restrictions, such as research into:
    - Emerging technologies determined by the U.S. government to be essential to national security
    - Chemical/biological weapons

    - Nuclear technology or weapons of mass destruction
    - Military or space applications

- Remember that everything you take with you out of the country is an “export,” even if you bring it back. Consider:
    - What items do you need to take with you?
    - Do you have data stored on any device that are export controlled?
    - Are there licensing, filing, or recordkeeping requirements for the items and information you plan on taking with you?

Your institution’s export compliance office can help with these determinations, apply for licenses, and help with associated recordkeeping requirements.

Export License Requirements

In rare cases, the material and data may require an export license prior to shipping, hand-carrying, or transferring.

Whether something requires an export license depends on:

- What it is
- Where it’s going
- What it will be used for
- Who will be using it

Your institution’s export compliance office can help with these determinations as well as apply for licenses and help with associated recordkeeping requirements.

U.S. Sanctions Regulations

The U.S. government has identified countries that are comprehensively sanctioned or designated as countries of concern. The Department of Treasury, Office of Foreign Assets Control (OFAC), broadly regulates and restricts transactions with sanctioned and embargoed countries, including certain academic exchanges, activities, and research collaborations.

OFAC regulations apply to U.S. citizens and permanent residents wherever located, and to foreign nationals located in the United States.

- Cuba, Iran, North Korea, and Syria are under currently subject to comprehensive U.S. sanctions, and most activities involving these countries requires U.S. government authorization.
- Other countries/regions under heightened sanctions and export restrictions, such as Russia, Belarus, the Donetsk People’s Republic (DNR), Luhansk People’s Republic (LNR), and Crimea regions of Ukraine, and China, pose additional risk for violating U.S. sanctions regulations and export control laws.
- OFAC’s current Sanctions Programs and Country Information may be found here:
- https://ofac.treasury.gov/sanctions-programs-and-country-information

Care should be taken to ensure that international travel to, and activities engaged in while visiting sanctioned countries does not violate OFAC regulations.

MFTRP Terms and Examples

Overcommitment

Per the CHIPS and Science Act, MFTRP terms can include:

- "Establishing a laboratory or company, accepting a faculty position, or undertaking any other employment or appointment in a foreign country or with an entity based in, funded by, or affiliated with a foreign country if such activities are in violation of the standard terms and conditions of a Federal research and development award;"
- "Through funding or effort related to the foreign talent recruitment program, being limited in the capacity to carry out a research and development award or required to engage in work that would result in substantial overlap or duplication with a Federal research and development award;"

From a MFTRP:

- "Party B is employed by Party A for a teaching and research position. The employed positions are: Professor; Employment Method: Party B works for Party A every year for 9 months during the contract period [5 years]." – **It is not possible to be employed full-time at a U.S. institution and conduct U.S. funded research cumulatively involving more than 3 months of effort with these terms.**

Talent Recruitment

Per the CHIPS and Science Act, MFTRP terms can include:

- "Being required to recruit trainees or researchers to enroll in such program, position, or activity"

From a MFTRP:

- "Assist introduce 1-2 international outstanding scholars into Party A (such as National One-thousand Talent or Youth Talent…) for Party A..."

Unauthorized Transfer and Foreign Funding Requirements

Per the CHIPS and Science Act, MFTRP terms can include:

- "Engaging in the unauthorized transfer of intellectual property, materials, data products, or other nonpublic information owned by a United States entity or developed with a Federal research and development award to the government of a foreign country or an entity based in, funded by, or affiliated with a foreign country regardless of whether that government or entity provided support for the development of the intellectual property, materials, or data products;"
- "Being required to apply for and successfully receive funding from the sponsoring foreign government's funding agencies with the sponsoring foreign organization as the recipient;"

From a MFTRP:

- "During the contract period, Party B must obtain 2 national-level scientific research projects (including projects transferred from outside the school) and list Guangzhou University as their institution when applying for them." - **Possible unauthorized transfer of U.S. funded intellectual property (e.g., pre-publication or pre-patent)**
- "Party B must apply to obtain or complete national-level major scientific research projects (such as key research and development projects or Science and Technology Ministry Topics) and list (country of concern] University as their institution when applying for them. The obtained project can be considered equivalent to 2 national-level projects." - **Being required to apply for and successfully receive funding from the sponsoring foreign government's funding agencies with the sponsoring foreign organization as the recipient;**

Acknowledging only the Foreign Institution

Per the CHIPS and Science Act, MFTRP terms can include:

- "Being required to omit acknowledgment of the recipient [U.S.] institution [Employer] with which the individual is affiliated, or the Federal research agency sponsoring the research and development award, contrary to the institutional policies or standard terms and conditions of the Federal research and development award;"

From a MFTRP:

- "Unless it has Party A's written consent, Party B shall not use identities other than those of [country of concern] University staff to publish works, accept interviews, host lectures, or hold public academic activities after the contract takes effect."

Safety Regulations for Shipping Items and Materials

Safety Issues or Limitations

Know if there are specific safety issues or limitations for shipping your materials.

Your institution likely has training available for you and your staff that will help you identity these types of shipment and train you on how to ship them appropriately.

Permits and Customs

- Know what permits, if any, are required both to ship and receive and make sure they are in place prior to shipping.
- Your international partner should know if the material requires a permit to be imported into their country.
- Know if there are additional Customs requirements (incoming and outgoing)
- *Your institution's environmental health and safety office and export compliance office can help with these determinations and authorizations.*

Hazardous Materials

- Dangerous Goods or hazardous materials (biological substances, chemicals, or radioactive material) shipped both domestically and abroad are subject to a variety of U.S. government and international regulations, as well as airline and ground carrier requirements.
- Your institution likely has training available for you and your staff that will help you identify these types of shipments and train you on how to ship them appropriately.
- IATA - Dangerous Goods Manuals

Federal Reporting Requirements, Prior Approvals, and Resources

Federal Reporting Requirements

Higher Education Act Section 117 requires institutions of higher education that receive federal financial assistance to disclose semiannually to the **Department of Education** any foreign gifts and contracts that, alone or combined, are valued at $250,000 or more in a calendar year.

Section 10339B of the CHIPS Act of 2022 requires **National Science Foundation** (NSF) recipient institutions of higher education to disclose annually gifts and contracts of $50,000 or more from a foreign source associated with a country of concern (China, Russia, Iran, North Korea). Reporting is expected to begin in July 2024.

The **National Institutes of Health** requires Immediate Notification of Undisclosed Other Support when a recipient organization discovers that a PI or senior personnel has failed to disclose Other Support information during Just-in-Time or in an annual report. Similarly, **NSF** requires a post-award disclosure if a PI or co-PI failed to disclose current support or in-kind contribution information during the proposal submission process.

Prohibitions and Prior Approvals

Beginning in 2011, appropriations law prohibits participation, collaboration, or coordination bilaterally with China or any Chinese-owned company on any N**ational Aeronautics and Space Administration** (NASA) project. Per a footnote in section 2.16, Current and Pending Support, of NASA's Proposer's Guide, "'China or Chinese-owned Company' means the People's Republic of China (PRC), any company owned by the PRC, or any company incorporated under the laws of the PRC. Chinese universities and other similar institutions are considered to be incorporated under the laws of the PRC and, therefore, the funding restrictions apply to grants and cooperative agreements that include bilateral participation, collaboration, or coordination with Chinese universities.

The **National Institutes of Health** requires prior approval of a "foreign component", performance of any significant element or segment of the project outside the United States. Find additional details here.

In Order DOE O 142.3B Change 1, the **Department of Energy** establishes requirements for foreign national access to DOE sites, information, and technologies. This may include a review and approval process of individuals working on a DOE project.

Certain **Department of Energy** operating units (example) may only allow international travel that is listed and approved in the project budget and may also require an approval to be obtained prior to actual travel.

Agency-Specific Resources

The **Department of Defense** Countering Unwanted Foreign Influence in DoD funded Research at IHEs includes a Decision Matrix (Part 2, Table 1) used to make funding decisions regarding research that is not classified or controlled unclassified, and a list of foreign institutions (Part 3, Tables 1) confirmed as engaging in problematic activity. Caution is recommended when engaging with these institutions.

The **National Science Foundation** (NSF) released guidelines on research security analytics in February 2023 regarding advanced monitoring and verification activities of NSF proposals and awards.

The **National Counterintelligence and Security Center** Safeguarding Science toolkit is a resource developed by several federal partners to foster identification and mitigation of risks to U.S. research and innovation.

Authorship

Defining Authorship

Most journals and ethics committees such as the International Committee of Medical Journal Editors hold that an author of a publication must meet four criteria:

- Substantial contributions to the conception or design of the work; or the acquisition, analysis, or interpretation of data for the work; AND
- Drafting the work or revising it critically for important intellectual content; AND
- Final approval of the version to be published; AND
- Agreement to be accountable for all aspects of the work in ensuring that questions related to the accuracy or integrity of any part of the work are appropriately investigated and resolved.

Authorship Best Practices

- Even before a project is started, it is useful to define the potential authors and their role in completing the work.
- When citing a grant in a publication, link the grant to the appropriate author (e.g., “D.E.F. was funded by NIH grant AI123456”).

- Even if it is appropriate to include an investigator as an author, their grants should not be cited unless the awards supported the conduct of the study and the work is in-scope for the grants.
- Some malign foreign talent programs have required participants to publish U.S. funded work in particular journals, and to attribute foreign institutions or funding sources that did not support the work. All contracts should be reviewed thoroughly to assure that the terms do not require such inappropriate citations.

Inappropriate Authorship Practices

- Ghost authorship (failing to include a substantial collaborator) or adding a Gift/Guest Author, an author who did not contribute substantially to the work. Often gift authors are senior investigators who are added to increase the chances a paper will be published, sometimes without their permission.
- Citing a grant number on a publication when the award was not used to support the research, sometimes as a tactic to increase the chances the paper will be accepted.
- Misrepresentation of academic affiliations of authors, suggesting that work was performed at an institution other than where it was conducted.

Funding Requirements

- Funding agencies require that you cite all sources of support in research articles and when issuing statements, press releases and other documents describing projects or programs funded in whole or in part with Federal money (required by section 511 of Public Law 101-166, the Steven's Amendment).
- However, they are also reviewing manuscripts to assure that grant numbers are only listed on in-scope articles.
- In addition, funding agencies are scrutinizing the citation of U.S. Federal grants on studies conducted at a foreign institution, as this signals a potential foreign component to the research.
    - The performance of any significant element or segment of a project funded by a U.S. Federal agency outside the United States must be disclosed and approved in advance by that agency.

Assessing Potential Collaboration: Questions to Consider From the 2019 JASON Advisory Report

1. Are the terms made clear in writing? Are all participants known?
2. Is any information being withheld from participants? If so, why?
3. Does any aspect seem unusual, unnecessary, or poorly specified?
4. Where does funding come from? Is each party's contribution clear?
5. Are tangible assets identified? How will they be shared and allocated?
6. Has ownership of resulting intellectual property been established?
7. How does a participant end their engagement?

8. Are scholars expected to reside away from their institutions or organizations?
9. What are the reporting requirements to sponsoring institutions?
10. Who controls research dissemination? Will results be publishable?
11. Is there relevant expertise on both sides with meaningful contributions?
12. Does the collaboration involve sponsors or topics with ethical concerns?

Foreign Talent Recruitment Program Definition

A foreign talent recruitment program is any program, position, or activity that includes compensation in the form of cash, in-kind compensation, including research funding, promised future compensation, complimentary foreign travel, things of non de minimis value, honorific titles, career advancement opportunities, or other types of remuneration or consideration directly provided by a foreign country at any level (national, provincial, or local) or their designee, or an entity based in, funded by, or affiliated with a foreign country, whether or not directly sponsored by the foreign country, to an individual, whether directly or indirectly stated in the arrangement, contract, or other documentation at issue.

Elicitation

Elicitation is when someone attempts to gather confidential, proprietary, unpublished or other information from you in ways that feel like normal, friendly interactions. It can happen during common academic activities, such as:

1. Being invited to give a talk
2. Receiving a request to share data or materials
3. Hosting a visitor
4. Traveling, or
5. Receiving a request for collaboration

Most people you work with likely have good intentions. Because a trained elicitor understands human and cultural predispositions and takes advantage of those, elicitation can be difficult to recognize.

Here are some best practices:

1. Never share confidential proprietary or unpublished information with any unauthorized person, including in a casual conversation;
2. When asked to collaborate, consider the other person's intentions and motivation. From the onset:
    a. Set expectations with collaborators;
    b. Follow academic norms in your field that support research security;
    c. Ask yourself, 'What do I know about this person and their associated institution?' Seek to learn more if the person and institution are unknown or not well known.
3. Contact your Research Security point of contacts for assistance if you have questions.

Malign Foreign Talent Recruitment Program Definition

(A) any program, position, or activity that includes compensation in the form of cash, in-kind compensation, including research funding, promised future compensation, complimentary foreign travel, things of non de minimis value, honorific titles, career advancement opportunities, or other types of remuneration or consideration directly provided by a foreign country at any level (national, provincial, or local) or their designee, or an entity based in, funded by, or affiliated with a foreign country, whether or not directly sponsored by the foreign country, to the targeted individual, whether directly or indirectly stated in the arrangement, contract, or other documentation at issue, in exchange for the individual—

(i) engaging in the unauthorized transfer of intellectual property, materials, data products, or other nonpublic information owned by a United States entity or developed with a Federal research and development award to the government of a foreign country or an entity based in, funded by, or affiliated with a foreign country regardless of whether that government or entity provided support for the development of the intellectual property, materials, or data products;

(ii) being required to recruit trainees or researchers to enroll in such program, position, or activity;

(iii) establishing a laboratory or company, accepting a faculty position, or undertaking any other employment or appointment in a foreign country or with an entity based in, funded by, or affiliated with a foreign country if such activities are in violation of the standard terms and conditions of a Federal research and development award;

(iv) being unable to terminate the foreign talent recruitment program contract or agreement except in extraordinary circumstances;

(v) through funding or effort related to the foreign talent recruitment program, being limited in the capacity to carry out a research and development award or required to engage in work that would result in substantial overlap or duplication with a Federal research and development award;

(vi) being required to apply for and successfully receive funding from the sponsoring foreign government's funding agencies with the sponsoring foreign organization as the recipient;

(vii) being required to omit acknowledgment of the recipient institution with which the individual is affiliated, or the Federal research agency sponsoring the research and development award, contrary to the institutional policies or standard terms and conditions of the Federal research and development award;

(viii) being required to not disclose to the Federal research agency or employing institution the participation of such individual in such program, position, or activity; or

(ix) having a conflict of interest or conflict of commitment contrary to the standard terms and conditions of the Federal research and development award; and

(B) a program that is sponsored by—

(i) a foreign country of concern or an entity based in a foreign country of concern, whether or not directly sponsored by the foreign country of concern; [Per the Act, foreign country of concern "means the People's Republic of China, the Democratic People's

Republic of Korea, the Russian Federation, the Islamic Republic of Iran, or any other country determined to be a country of concern by the Department of State.]
(ii) an academic institution on the list developed under section 1286(c)(8) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (10 U.S.C. 2358 note; Public Law 115-232); or
(iii) a foreign talent recruitment program on the list developed under section 1286(c)(9) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (10 U.S.C. 2358 note; Public Law 115-232)." [Lists referenced in items B. (ii) and (iii) are available in Part 3 of the Department of Defense (DoD) document Countering Unwanted Foreign Influence in Department funded Research at Institutions of Higher Education]

Internal Risks

An insider is any person who has or had authorized access to or knowledge of an organization's resources, including personnel, facilities, information, equipment, networks, and systems. Insider threat involves the threat that an insider will use their authorized access, intentionally or unintentionally, to do harm to an organization's mission, resources, personnel, facilities, information, equipment, networks, or systems.

Insider threats can occur due to:

- Negligence
- Accident
- Intent
- Collusion
- Third-party threats